

DUTY TO CALL WITNESSES – RULES

General Rule

The principles which must be applied in deciding whether to call witnesses were succinctly stated by Smith ACJ in *R v Lucas* [1973] VR 693 at 697–698:

The Crown's duty to act with fairness, and with the single aim of establishing the truth, denies it the right to pick and choose as between independent and apparently credible witnesses for merely tactical reasons, such as a desire to be able to cross-examine those who are unfavourable, or less favourable than others, to the Crown's case ... his general duty is subject to the qualification that the Crown, in its discretion, may properly decline to call any such person as its witness when it has strong and satisfactory reasons for doing so, as for example where the witness is clearly untruthful or unreliable ... or where the numbers to be called would be unreasonably great having regard to the importance of the point to which they can speak. But this discretion is to be exercised in furtherance of justice and with fairness to the defence...

In *R v Apostilides* (1984) 154 CLR 563 at 575 the High Court summarised the law:

We have come to the conclusion that the following general propositions are applicable to the conduct of criminal trials in Australia:

1. The Crown Prosecutor alone bears the responsibility of deciding whether a person will be called as a witness for the Crown.
2. The trial judge may but is not obliged to question the prosecutor in order to discover the reasons which lead the prosecutor to decline to call a particular person. He is not called upon to adjudicate the sufficiency of those reasons.
3. Whilst at the close of the Crown case the trial judge may properly invite the prosecutor to reconsider such a decision and to have regard to the implications as they appear to the judge at that stage of the proceedings, he cannot direct the prosecutor to call a particular witness.
4. When charging the jury, the trial judge may make such comment as he then thinks to be appropriate ...
5. Save in the most exceptional circumstances, the trial judge should not himself call a person to give evidence.
6. A decision of the prosecutor not to call a particular person as a witness will only constitute a ground for setting aside a conviction if, when viewed against the conduct of the trial taken as a whole, it is seen to give rise to a miscarriage of justice.

Calling of Witness by the Court

Deane J noted in the High Court in *Whitehorn v The Queen* (1983) 152 CLR 657 at 663:

Under the adversary system which operates in a criminal trial in this country, it is for the Crown and not the judge to determine what witnesses are called by the Crown.

As stated in the 5th proposition laid down in *Apostilides*, “save in the most exceptional circumstances” a trial judge should not call a person to give evidence. After listing the general propositions the High Court noted:

... the prosecutor's role in this regard is a lonely one, the nature of which is such that it cannot be shared with the trial judge without placing in jeopardy the essential independence of that office in the adversary system.

The judges in *Apostilides*, at p 576, adopted a passage from *Whitehorn*, at pp 682–683, as providing justification for the proposition that a trial judge should not call witnesses except in the most exceptional of circumstances:

A trial does not involve the pursuit of truth by any means. The adversary system is the means adopted and the judge's role is to hold the balance between the contending parties without himself taking part in their disputations. It is not an inquisitorial role in which he seeks to remedy the deficiencies in the case on either side ... As was pointed out in *Richardson v The Queen*, he frequently lacks that knowledge and information about the witness or his relationship to the parties and to the evidence to be presented which is essential in making such a decision. If he calls a witness himself he will almost always have to do so in the dark, not knowing with any certainty what the witness is going to say or whether he can be relied upon.